

8. PR0000902 In the Matter of Kelly Giacomini

Appearances are required. The Court is favorably inclined to order the parties to attend mediation, with costs of the same to be paid by the trust, pursuant to Probate Code section 17206 and *Breslin v. Breslin* (2021) 62 Cal. App.5th 801, 806 (“The probate court has the power to order the parties into mediation.”). The parties are hereby advised:

Mediation may result in a settlement of the matters that are the subject of this case and of any and all interested persons and parties interests therein. Settlement of the matter may result in an agreement for the distribution of assets of the above-referenced trust and of the estates of the settlors therein, however those assets may be held. Settlement of the matter may also result in an award of attorneys’ fees to one or more parties under *Smith v. Szeyller* (2019) 31 Cal.App.5th 450, 242. Interested persons or parties who do not have counsel may attend the mediation and participate.

Non-participating persons or parties who receive notice of the date, time and place of the mediation may be bound by the terms of any agreement reached at mediation without further action by the Court or further hearing. Rights of trust beneficiaries or prospective beneficiaries may be lost or forfeited by the failure to participate in mediation.

Participation in mediation is a prerequisite to an evidentiary hearing. By failing to participate in mediation, a person or party will waive their right to an evidentiary hearing.

Petitioner Kelly Giacomini and Beneficiaries Kirt Ankeny and Keri Nitta shall meet and confer regarding selection of a mutually acceptable mediator. The Court continues this matter for review on the status of mediation to May 1, 2026, at 9:00 a.m., in Department 6, and continues to reserve jurisdiction over the pending motions. No later than two weeks prior to the continued hearing date, the parties shall submit a joint statement indicating the status regarding selection of a mediator.

9. PR0000954 In the Matter of Karen Elkin

No appearances are required. The petition to administer the estate is granted as prayed. Letters shall issue once Petitioner has lodged the will with the Court. (See Local Rule 8.06.) A proposed order has been submitted.

10. PR0000955 In the Matter of Joan M. O'Donnell

No appearances are required. The Court continues this matter to June 5, 2026, at 9:00 a.m., in Department 6. The Court appoints Katie Lenore as counsel for the proposed Conservatee. The Clerk shall notify Ms. Lenore of the appointment and provide a copy of the minutes.